Capital One Online Banking Terms & Conditions

Last modified 12/2/2025

1. **Introduction**

   This Agreement governs your use of the Services (defined below). Unless otherwise noted, each section below applies regardless of whether you are using the Services to access your Bank Account or Non-Bank Account.

   Before using any of the Services, please read this Agreement. You accept this Agreement by using the Services. If you don't accept these terms, or any subsequent changes to them, you may not use the Services. You may withdraw your consent to this agreement at any time by calling us at (844) 348-8656; however, this will result in the loss of your online account access. This Agreement governs your use of any information, content, products, services, transactions, and other features available through the Online Banking Web site (the "Online Banking Site"). This Agreement is part of the Terms and Conditions for capitalone.com and the Terms and Conditions for myaccounts.capitalone.com. All of these Terms and Conditions apply to your use of the Services on the Online Banking Site. Please also visit www.capitalone.com/privacy for information about how Capital One collects, uses, and discloses personal information in connection with the Services.

   If you use certain accounts, features, products or services in connection with the Services, you may be subject to separate agreements governing such accounts, features, products, or services (collectively, "Additional Agreement"). This includes agreements or terms governing any checking, savings or other deposit accounts; loan, line of credit, auto and credit card

accounts; pre-qualification requests; any other accounts that you may access while using the Services; fee schedules; our electronic funds transfer agreement and disclosures; our Online Bill Payment Authorization and Agreement; and your signature card. The Additional Agreements are incorporated into this Agreement.

If the terms of this Agreement conflict with the terms in any Additional Agreement solely as they apply to online banking and online bill payment services, this Agreement controls. The terms of this Agreement are not intended to modify any disclosures or other terms that are required by law and that are provided by Capital One in an Additional Agreement.

This Agreement shall apply regardless of how the Services are accessed. This includes but is not limited to through the URL addresses https://www.capitalone.com and https://myaccounts.capitalone.com, the Capital One mobile app, text message, or electronic mail or links from another website via a computer, mobile device, or any other means.

2. **Definitions**

Unless otherwise stated, the following definitions apply throughout this Agreement:

"**Capital One**", "**we**", "**us**" or "**our**" mean, collectively, Capital One Financial Corporation, its subsidiaries, divisions and affiliates (including, without limitation, Capital One, N.A. and all of their respective successors, assigns, agents, and/or authorized representatives). However, for a specific account accessible through the Online Banking Site, "Capital One", "we", "us" or "our" means the particular entity in the Capital One family that offers such account. Please consult your account agreement(s) for information about the Capital One company servicing your individual account(s).

"**You**" or "**your**" mean each Authorized Person (as defined below) with an interest in a Capital One account which is accessible through the Services or through the Online Banking Site; the Business and the Business Signer; each person who signed the application or other binding documentation for the account with Capital One (a joint accountholder); or any person authorized to use the account in any way. Whenever "you" is more than one person with respect to any such account or relationship (e.g. primary and coborrower for an auto loan account), the obligations and agreements applicable to you under this Agreement shall be deemed to be joint and several wherever appropriate.

"**Account**" and "**accounts**" mean the checking, savings or other deposit accounts, loan accounts, credit cards, auto accounts, and other accounts that are tied to your Social Security number, Tax Identification Number (including EIN) or other unique identifier provided to you by Capital One (your "Customer Number") and that are used through the Services, and any other account that you may add to your online banking profile (as further set forth below).

"**Account Manager**" is an individual on a card account who shares near-equal servicing capabilities as the Primary Cardholder on the Primary Cardholder's card account. They can do most everything on a card that a Primary Cardholder can except for closing the account. They are not financially responsible for the account.

"**Account User(s)**" are Authorized Persons who share a credit card account with a Primary Cardholder. Account User(s) include Account Managers and Authorized Users.

"**Authorized Person**" means, for an individual account, each person who has an interest in or authority to transact business using such account. For an entity account, it means each person listed as an authorized signor on the signature card for such account or otherwise authorized to transact any business using such account.

"**Authorized User**" is a term used in credit card accounts that refers to an individual who shares some access to a Primary Cardholder's card account and is not financially responsible for the account. See Account Users Permissions below.

"**Bank Accounts**" mean any account that you are an account holder (including joint) on that is a Capital One checking, savings, money market, certificate of deposit, personal loan or line of credit. These accounts will be automatically linked to your Online Banking profile.

"**Bank Bill Pay Terms**" means the terms that govern when you use the Bank Bill Pay Services to pay your bills.

"**Biller**" is the person or entity to which you wish to receive a bill payment. This also includes the person or entity from which you receive electronic bills.

"**Billing Accoun**t" is the checking account from which all Service fees will be automatically debited.

"**Business**" means the corporation, company, partnership, association, or other business which employs an Authorized User (or with which an Authorized User is otherwise associated) and which has arranged for the issue of the Payment card to an Authorized User.

"**Business Day**" is every Monday through Friday, excluding Federal Reserve holidays.

"**Capital One Site**" means any website owned or operated by a member of the Capital One family of companies that contains information about available products and services and/or terms and conditions relating to any accounts, account information and/or transactions that you may view, perform, modify or otherwise access or use while using the Services. Capital One Sites include, without limitation, the Online Banking Site and capitalone.com.

"**Computer**" means your computer, computer system, mobile device, or any other method used to access a Capital One Site and all related equipment and software.

"**Due Date**" is the date on which payment to a Biller is due as reflected on the billing statement that you receive from that Biller. It is not the late payment date or the date beginning a grace period or any date during a grace period during which you may not be assessed a late fee.

"**Exception Payments**" means payments to deposit accounts or brokerage accounts; or payments to settle securities transactions (including, without limitation, stocks, bonds, securities, futures (forex), options, or an investment interest in any entity or property).

"**External Transfers**" mean monetary transfers between your accounts held at Capital One and an external financial institution.

"**Funds Transfers**" mean all Internal Transfers and External Transfers.

"**Internal Transfers**" mean monetary transfers between your accounts held at Capital One.

"**Navigator Platform**" means the online service that allows you to shop for cars, estimate auto financing terms, and submit auto-financing pre-qualification requests to Capital One and/or its participating lenders. Navigator Platform includes the Auto Navigator mobile app or website, a car dealer's website, or a Capital One button on a car dealer's website.

"**Non-Bank Accounts**" means any account that you are the primary account holder for, including but not limited to Capital One: credit card accounts; loan accounts; auto financing and refinancing pre-qualifications and applications; interactions with the Navigator Platform; investment accounts; or mortgages. These accounts may or may not be automatically linked to your Online Banking profile, and in some cases you may not have access to the full suite of Services available through the Capital One mobile app for these accounts.

"**Online Banking**" or "**Online Banking Site**" refers to the online platform(s) that allows you to perform the Services, including the Capital One mobile app and Navigator Platform.

"**Online Bill Pay**" refers to the services we provide through our online bill payment service.

"**Online Bill Payment Account**" is the Capital One deposit account from which payments are made through Online Bill Pay.

"**Payment Account**" or "Eligible Transaction Account" means any transaction account that is eligible for the Services and that is designated by you for the following purposes: making payments through the bill payment features of the Services, for automatic debiting of any service fees, and to which any payments and credits to you will be credited. For further information, please contact your Account Officer or Online Banking Customer Service at 1-877-383-4802.

"**Payment Instruction**" is the information you provide for a payment to be made to a Biller through the Online Bill Pay Service. This includes Biller name, Biller account number, and Scheduled Payment Date.

"**Personal Account**" means any asset account established by a natural person primarily for personal, family, or household purposes.

"**Primary Cardholder**" is an individual who opens a consumer card account and is financially responsible for the account. The Primary Cardholder can add Account Users, fully service the account, redeem rewards if applicable, and close the account.

"**Scheduled Payment Date**" is the day you want your Biller to receive your bill payment. If the Scheduled Payment Date falls on a non-Business Day, the Scheduled Payment Date will be considered to be the previous Business Day.

"**Scheduled Payment**" is a payment that has been scheduled through the Services but has not been processed.

"**Service Provider**" means companies (and their affiliates) that we have engaged to render some or all of the Services to you on our behalf.

3. **Description of Services**

The "Services" means all information, materials, content, communications, features, products, services, methods of conducting transactions and transactions available, offered, made, obtained or otherwise provided or used through the Online Banking Site. This may include, without limitation, the ability to (a) create, enter, and change credentials to access and manage your

Account(s) through the Online Banking Site; (b) transfer funds between certain accounts; (c) make bill payments through Online Bill Pay and schedule other payments to certain accounts; (d) obtain account balance and other account information for various Capital One accounts that you have (including checking, savings or other deposit accounts, loan accounts, auto loan accounts, credit card accounts); (e) obtain transaction information on your accounts; (f) download account transactions to your Computer; (g) update your address; (h) view online statements and tax forms; (i) view online check images; (j) order statement copies; (k) order check copies; and/or (l) re-order checks for checking accounts established at a Capital One bank. These features are subject to this Agreement and any Additional Agreements that apply. The Services also include any portion of the Online Banking Site and any software used to operate the Services. Subject to this Agreement, you may use the Services seven days a week, twenty-four hours a day, except for any scheduled or unscheduled interruptions in the Services for maintenance, security or any other reasons, as described below.

Some features, information, types of transactions or other parts of the Services may not be available for all of your Capital One accounts or when accessing the Services electronically. For some of your accounts, you may be able to connect from the Online Banking Site to another Capital One Site relating to such accounts where you may be able to access features, information, transactions or other services pertaining to those accounts that you cannot access directly on the Online Banking Site.

Capital One works hard to offer you products and services that are useful and reliable. But Capital One does not provide, endorse, or guarantee any third-party product, service, information, or recommendation available through the Online Banking Site. The third parties providing products and services through the Online Banking Site are not affiliated with Capital One. They are solely responsible for their products, services, information, recommendations, and all other content on their Web sites. Educational tools, calculators, guides, and other content available on this site may be provided by third parties. They are provided for informational purposes only. They are not intended to provide legal, investment, or financial advice. They do not indicate the availability or suitability of any Capital One product or service. For specific advice about your situation, you may wish to ask a qualified professional.

Capital One is not liable for any third party's failure with regard to such products, services, and benefits. These products and services are NOT FDIC INSURED OR BANK GUARANTEED. We encourage you to check offers, products, and services to become familiar with any restrictions or conditions.

By responding to third party offers, you may be communicating information about yourself to the company that provides such products or services. Please be aware that these third parties may have a different privacy policy than Capital One's. Their sites may also provide less security than Capital One.

4. **Security, Confidentiality of Access Information**

Use of the Services requires a computer or approved mobile device and Internet access connected through an Internet or mobile service provider with a Web browser (for example, Firefox, Chrome, or Microsoft Edge).

To protect the confidentiality and security of your financial information, you must connect to the Online Banking Site using an Internet browser that supports TLS 1.2 or higher. Use of the Services with lower than TLS 1.2 is strictly prohibited. To the extent you are able to access the Services using lower than TLS 1.2, we specifically disclaim any and all responsibility for losses resulting from your use of such lower encryption. We may change these requirements from time to time.

You agree to keep your Customer Number, username, password, and any other security or access information (collectively, “Access Information”) confidential to prevent unauthorized access to your account(s) and to prevent unauthorized use of the Services. We recommend that you memorize your Access Information and do not write it down. You agree not to give or make available your Access Information to any unauthorized individual.

If you believe the security of your password or any other Access Information has been compromised in any way you must notify us immediately. This includes when your password has been lost or stolen; someone has attempted to use the Services under your Customer Number without your consent; your account has been accessed, or someone has transferred money from your account without your permission. (See Section 17 titled “Your Responsibilities And Liabilities” below.)

We reserve the right to deny you access to any accounts or to the Services, or to deny the processing of transactions, to maintain or restore security or performance of the Online Banking Site or any other Capital One Sites and systems. We may do so if we reasonably believe in our sole discretion your Access Information has been or may be obtained (or is being used or may be used) by an unauthorized person. We may try to notify you in advance but cannot guarantee we will do so.

Access to and use of the Online Banking Site is subject to applicable federal, state and local laws and regulations. Unauthorized use of the Online Banking Site is prohibited. Violators can be prosecuted under applicable law.

5. **Enrollment in Services; Accounts Which Can Be Accessed**

To enroll in Online Banking for certain Accounts, you will need your account number, Social Security Number, or Tax Identification Number. If you do not have such a number and are interested in enrolling, you must contact Online Banking

Customer Service at 1-877-383-4802 for more information. Additional requirements may apply depending on the account(s) you have.

Your Online Banking profile may automatically link and display summary information about your linked credit card, auto loan, installment loan, or other accounts. To get any other information or conduct any activity on these account types, you must go to the specific page or site for each account.

If you have a linked joint account or other account that requires two or more signatures to make withdrawals, transfers or transactions, you will not be able to perform certain transactions on such account using the Services. Non-linked Account(s) might not be accessible through the Services.

If you share an account with another person, you must not share your log in credentials with them. Doing so is a violation of this Agreement and they will have access to view all of your linked accounts, including your individual accounts. As long as you don't share your log in credentials, people with whom you share accounts can use their own log-in credentials and will only be able to view accounts that are shared with you, not your individual accounts.

A. **WHEN USING THE SERVICES TO ACCESS YOUR BANK ACCOUNT**

   i. **Conditions for Enrollment**

   To enroll in Online Banking for your bank account, you must have opened at least one of the following accounts under your Customer Number: a checking, savings, money market, CD, IRA or other deposit account, or an installment loan, line of credit or other loan account, offered by Capital One, N.A. The use of Online Bill Pay requires at least one eligible checking account with Capital One, N.A.

   If you have more than one eligible account, we may"link" your eligible accounts together for purposes of the Services. All such accounts will appear in your online banking profile on the Online Banking Site. Any accounts for which you are an Authorized Person (including joint accounts for which you are one of multiple Authorized Persons) will appear in your online banking profile.

   The Terms and Conditions that govern the use of Bank Bill Pay Terms are located in your checking account disclosures.

B. **WHEN USING THE SERVICES TO ACCESS YOUR CREDIT CARD ACCOUNT**

   i. **Conditions for Enrollment**

To enroll in Online Banking for your credit card account, you must be the primary account holder on at least one eligible account that is not restricted for fraud or national security reasons. If you have requested that your account be closed but you still have a balance, your account is in collections, suspected of fraud, or is otherwise in a restricted status, you may still have access to Online Banking. But you may not be able to perform certain functions on your account such as request a balance transfer.

By enrolling in Online Banking, you certify that you (a) are 18 or older; (b) are a United States resident; (c) are legally capable of entering into contracts; and (d) have and will only register Payment Account(s) in your name or the name of a business on which you are an account holder or Authorized User. You agree that Capital One may at any time verify any registration information you provide.

If enrolling to use Online Banking for a Business, you also represent and warrant that (a) you have authority to enter into this Agreement on behalf of the Business and yourself; (b) you have authority to provide all required or requested authorizations to us on behalf of both yourself and the Business; and (c) you will use the Payment Account(s) consistent with your obligations to and agreements with the Business.

ii. **Linking Your Capital One Credit Card Account(s) and Certain Other Accounts**
Once enrolled, you will need to choose the accounts you would like to have Online Banking access to from the list of eligible accounts we provide.

Capital One credit cards with different usernames may not be linked. You can consolidate accounts serviced with different usernames to a single one. If you choose to do so, pending payments and the payment account you have set up will be moved to the new username; however, secured message inboxes from the old user name(s) will not move. Non-linked account(s) will not be accessible through Online Banking.

To get any information or conduct any activity on any other accounts you may have with Capital One such as deposits or loans, you must access the Online Banking Site.

iii. **Account User Permissions**
Authorized Users and Account Managers on credit card accounts are able to make transactions on the account, but the primary cardholder is financially responsible for the account. The primary cardholder is responsible for all

charges made by their respective Account User(s), including any transactions in excess of the credit limit(s) that we may authorize for Account Users. We may also report their information to the credit bureaus.

Authorized Users and Account Managers must be at least 18 years old to be eligible for online access. Setting up an online account requires verification of the Authorized User's Social Security number (SSN). If SSN cannot be verified, online access cannot be granted to the Authorized User. Online Access cannot be revoked once an Authorized User has enrolled. Not all Authorized Users will be eligible for online access.

Depending on the channel, Authorized Users could review certain account information, but cannot make changes to the account.

C. **WHEN USING THE SERVICES TO ACCESS YOUR AUTO LOAN ACCOUNT**

i. **Conditions for Enrollment**

To enroll in Online Banking for your auto loan account, you must be an account holder of at least one Capital One auto loan account that is not restricted for fraud or national security reasons. If your account is in collections, suspected of fraud, discharged in a bankruptcy proceeding, or is otherwise in restricted status, you may still have access to Online Banking but you may not be able to perform certain functions on your account.

If you have more than one eligible account, we may "link" your eligible accounts together for purposes of the Services. All such accounts will appear in your online banking profile on the Online Banking Site. Any accounts for which you are an Authorized Person (including joint accounts for which you are one of multiple Authorized Persons) will appear in your online banking profile.

D. **INELIGIBLE ACCOUNTS**

We reserve the right to revoke your access to the Services for an account if it is now or later enters into any of the following statuses or conditions:

- Active bankruptcy;
- Requiring special handling;
- Paid in full;
- You are deceased;
- Settled in full; or

- Not serviced by Capital One

6. **Authority You Grant Capital One And Its Service Providers**

We have engaged Service Providers to provide some or all of the Services to you on our behalf. However, we are the only one liable for any payments or transfers conducted using the Service. And we are solely responsible to you and any third party for the regulatory responsibility that extends with the Service. You agree that we have the right to delegate to Service Providers all of our rights and obligations under this Agreement. The Service Providers will be third-party beneficiaries of this Agreement. They are entitled to all the rights and protections that this Agreement provides to us.

By enrolling in Online Banking, you authorize Capital One and its Service Providers to process transactions and instructions, including automatic recurring payments, in such a manner as you direct.

7. **Email, Text Messaging, Phone and Other Communications**

You agree that all electronic communications that we receive on the Online Banking Site or otherwise in connection with the Services such as those directing us to take an action with respect to your account, will be deemed valid, authentic, and binding obligations. These communications will be given the same legal effect as your written and signed paper communications and shall be considered a “writing” or “in writing.” They also shall be deemed to have been “signed” and to constitute an “original” when printed from electronic files or records established and maintained in the normal course of business.

You agree that electronic copies of communications are valid. You will not contest the validity or enforceability of such communications or any related transactions under the provisions of any applicable law (absent proof of altered data or tampering). This includes laws requiring certain agreements be in writing or signed by the party to be bound. Electronic copies of communications shall be admissible as evidence in any judicial, arbitration, mediation, or administrative proceeding to the same extent and under the same conditions as other business records originated and maintained in paper form.

To the maximum extent permitted by law, you agree to indemnify, defend, and hold harmless Capital One and our respective owners, affiliates, directors, officers, employees and agents from claims, losses, expenses, liability, damages and costs (including, but not limited to, direct, incidental, consequential, exemplary and indirect damages), and reasonable attorneys’ fees, caused by or arising out of any Services rendered by Capital One pursuant to or in accordance with any electronic communications.

You agree to receive all servicing and transactional communications from Capital One, including emails, text messages, security alerts, push notifications, and any Optional Communications (discussed below), at any time during the day or night regardless of the method of delivery. You agree that we and our Service Providers may monitor or record any conversation or other communication with you. You are also agreeing that we will not be liable for damages or other liability for the time of day any communications are sent or received.

A. **Email**

You agree to receive all servicing and transactional email communications from Capital One that are related to your use of the Services or to your account(s). This includes automatic security alerts and any optional alerts that you may receive (discussed below). You consent to any inadvertent disclosures that may occur as a result of us sending communications to your email address.

Email is not a secure method of communication. So we recommend that you do NOT use email to send confidential or personal information or initiate transactions on your accounts. We also recommend that you not send confidential or personal information in text messages. We will not respond to or act upon text messages received from you, unless in connection with a specific program or instructions provided to you. We recommend that for account transactions or confidential questions you use the appropriate functions available through Online Banking or contact us as specified on our Contact Us page.

B. **Security Alerts and Optional Communications (including Text Messages)**

Online Banking offers both security alerts and optional alerts and communications about certain accounts and account transactions. Security alerts may be provided to you for fraud protection and when certain important changes to your account occur. These alerts may include the addition of a new Biller, password and username updates, or changes in your physical or primary email address. Eligible alerts are sent automatically by email to your primary email address and/or by text message to your mobile device number, if you have provided one. You may provide additional contact points for security alerts using the “Messages & Alerts” menu on the Online Banking Site.

You agree to receive security alerts from us by prerecorded voice message and/or text message, including with the use of an automatic dialer (autodialer), at any mobile device number you provide to us. You may discontinue security alerts sent by text message as indicated below, but you will continue to receive security alerts by email.

In addition to security alerts, you have the option of receiving additional alerts or communications regarding certain other Online Banking and account activity, including payment due alerts, delivered by email, push notification, text message or voice ("Optional Communications"). You may be asked to select from options when you sign up for the Optional Communications. By signing up to receive any Optional Communications, you consent to delivery of such messages in the format selected to the contact points you identify. If you provide us with a mobile device number for Optional Communications, you expressly agree to receive prerecorded messages and/or text messages at that number from us, including with the use of an autodialer.

Security alerts and Optional Communications are subject to the following:

You are responsible for notifying us of any changes to your email, mobile device, and telephone contacts. Please sign into Online Banking to modify or cancel your Optional Communications. For help with text messages, you may text "HELP" to U.S. and Canada short code 227898. If you text "STOP" to short code 227898, the command will revoke your consent to receive security alerts, Optional Communications, and other Online Banking-related text messages at that mobile device (although we may send a confirmation of your opt-out). But this does not revoke any other consent you may have provided us.

We recommend that you do not send confidential or personal information to us in text messages. We will not respond to or act upon text messages received from you, unless in connection with a specific program or instructions provided to you.

Communications may contain our name and information about your accounts. Depending upon the communication, information pertaining to account balances, checks written, insufficient funds, collection activity, transactions or payment due dates may be included. Anyone with access to your email, mobile devices, or telephone or voicemail may be able to access the contents of the communication. It is your responsibility to secure these devices, protect your usernames and passwords, and provide timely information about contact changes in order to protect the confidentiality of this information. You consent to any disclosures by Capital One that may occur if you do not take appropriate steps to prevent access to your information by unauthorized persons.

We try to communicate in a timely manner with accurate information. However, we do not guarantee the delivery or accuracy of any communication. Communications may not be delivered immediately; may not reflect pending transactions or payments; and deposits may not be available for immediate withdrawal. If you require additional details about a transaction, you may sign into Online Banking or contact us as specified on our Contact Us page.

You agree that neither we nor our Service Providers will be liable for any delays, failure to deliver, or misdirected delivery of any communication; for any errors in the content of a communication; or for any actions taken or not taken by you or any third party in reliance on a communication.

In order to receive security alerts or Optional Communications via text message, your mobile device must be subscribed to a wireless service on a participating mobile carrier. You must be able to receive text messages using your mobile device and your carrier's service. A list of mobile carriers that can receive text messages from Capital One can be found here.

C. **Text Messages, Calls and/or Emails to You**
By providing us with a telephone number (including a wireless/cellular or mobile telephone number), you consent to receiving servicing and transactional calls from us and our Service Providers at that number INCLUDING THOSE MADE BY USE OF AN AUTOMATIC TELEPHONE DIALING SYSTEM ("ATDS or Autodialer"). By providing us with an email address, you also consent to receive emails from us for everyday business purposes (including identity verification). You acknowledge and agree that such telephone calls may include live telephone calls, prerecorded or artificial voice message calls, text messages, and calls made by an ATDS from us, our Service Providers, or our affiliates and agents. For text messaging, we may send recurring text messages from numbers and/or short codes used by Capital One, its service providers, or other parties calling on Capital One's behalf. Message and data rates may apply and you may reply STOP to stop.

D. **Mobile Wireless Carrier Data**
You authorize your wireless carrier to use or disclose information about your account and your wireless device, if available, to Capital One or its service provider for the duration of your relationship, solely to help identify you or your wireless device and to prevent fraud. See our Privacy Policy for how we treat your data.

8. **Electronic Communications Disclosure**

Certain laws and regulations require us to provide specific information to you in writing, which means you have a right to receive that information on paper. We may provide such information to you electronically if you have consented to receive that information electronically. You may have provided this consent at pre-qualification, pre-approval, application, or while logged into our Online Banking Site. Your consent status and the terms of your consent can be reviewed, or changed, on our Online Banking Site. To review your consent status, and the applicable terms and conditions, you'll need to sign into your online banking account to view and learn more about your paperless settings.

We may, as a courtesy, attempt to send you an email notification if we have made a document electronically available online. At times, we may still present you with paper disclosures or other documents that contain important information about your accounts and related services, as a result, you should continue to review any paper correspondence that we mail to you. Any communications that Capital One determines, in its sole discretion, that you should receive in paper rather than electronic form will be mailed to the address in our records, or otherwise delivered as required by law or any additional agreement. It is your responsibility to update Capital One if your mailing address changes. If your account is closed or access to the related service is terminated, we may send Communications to you in paper form via mail, even if you previously elected to receive such materials electronically.

9. **Funds Transfers for Bank Accounts**

This section applies only in connection with your use of the Services to access your Bank Account.

A. **GENERAL**

Your ability to transfer funds from certain accounts may be limited by federal law. You should refer to the deposit account agreement which governs your deposit account, a copy of which is available by calling Online Banking Customer Service at 1-877-442-3764. This will detail the legal restrictions and the service charges and penalties for excessive withdrawals or transfers. Transfers made using the Services are included in calculating the permissible number of transfers as described in your deposit account agreement.

We reserve the right to impose a frequency or dollar limit on transfers, or to refuse to make any transfer. We are obligated to notify you promptly if we decide to refuse to complete your transfer instruction; but that notification is not required if you attempt to make transfers that are prohibited under this Agreement, any Additional Agreement, other Capital One agreements affecting the terms of your account, or federal or state laws.

Except as provided in this Agreement, all Internal Transfer instructions received before 11:59 p.m. Eastern Time will be posted to your account the same Business Day. All Internal Transfer instructions received on or after 11:59 p.m. Eastern Time will be posted the next Business Day.

Transfers to or from Capital One 360 accounts are not considered Internal Transfers.

B. **EXTERNAL FUNDS TRANSFERS**

The External Funds Transfer service allows you to transfer funds between your linked personal deposit accounts at Capital One and deposit or investment accounts (checking, savings, or money market accounts) at other financial institutions. An “Inbound Transfer” moves funds from an outside account to a Capital One account. An “Outbound Transfer” moves funds from a Capital One account to an outside account. You will need to register each of your non-Capital One accounts that you wish to use for these transfers. You agree that you will only register accounts for which you have the authority to transfer funds. Capital One will post Inbound Transfers to your account on the “Deliver By” date. For Outbound Transfers, your funds will be debited on the Business Day following the “Send On” date. Outbound Transfers will arrive at your external financial institution on the Deliver By date. Consult your external financial institution for details on when funds will post to your account.

For transfers to a Capital One bank retail account, the funds may not be available until the third Business Day after the Deliver By date. For transfers into a Capital One bank account, the funds will become available in accordance with the terms of your Account Agreement.

C. **CUT-OFF TIME**

Any transfer made after the cut-off time will be initiated the next Business Day.

- Standard Transfers: 7:00 p.m. Eastern Time
- Next Day Transfers: 7:00 p.m. Eastern Time

D. **MODIFYING OR CANCELING TRANSFERS**

Pending transfer instructions can be canceled or modified until the status changes to “In Process.” Instructions cannot be canceled or modified after the cut-off time for the transfer date.

E. **TRANSFER FEES**

There is no fee to initiate Inbound Transfers or Outbound Transfers. For information on other fees we may provide for other transfer services, please review your account disclosures. We may change our fee schedule at any time. If we make a change, you will be notified in writing if required by applicable law. Cancellation of the services for which fees are charged does not release you from liability for any and all fees assessed by us but not yet paid prior to your cancellation.

F. **TRANSFER LIMITS**

Transfer limits are defined at enrollment to the Service. Daily and monthly dollar limits apply to the total of all transfers for all accounts linked to the user profile. Any transfer initiated on a day that is not a Business Day counts toward the

applicable limit for the next Business Day. A transfer remains “In Process” until fully processed. It will appear as “In Process” on your Transfer Activity page within Online Banking. Standard transfers typically remain “In Process” until the close of the third Business Day after the transfer is initiated. We may change your transfer limits at any time. Any decrease will be subject to notice, if required by law. But you agree that we may reduce your limits without prior notice upon occurrence of a Disqualifying Event, including:

- Any of your accounts with Capital One are not current or are not in good standing;
- You have had an overdraft, an over-limit item, or an item returned for insufficient funds with respect to any Capital One account during the current or three prior calendar months; or
- You have had any prior transfer to or from a non-Capital One account canceled, revoked, or not completed due to insufficient funds, revoked authorization, stopped payments, frozen account, or any similar reason.

G. **STATUS EMAIL**

Capital One will periodically send messages to your primary email address during the external funds transfer process. These messages will provide information pertaining to the trial deposit process, confirm account linkages, and contain status updates for transfers in progress. You are responsible for updating the email address should it change.

10. **Payments**

A. **WHEN USING THE SERVICES TO ACCESS YOUR BANK ACCOUNT**

Online payments include (a) payments where the Payment Account is a Capital One account (“Outgoing Payments”), including any payment that you schedule through our Online Bill Pay service; (b) payments to Capital One accounts (“Incoming Payments”); and (c) Funds Transfers to eligible loan or line of credit accounts. Funds Transfers are covered by the “Funds Transfers” section and any other provisions governing Funds Transfers in this Agreement.

i. **Online Bill Pay Authorization**

Online Bill Pay payments and any other bill payments permitted by the Services are debited from your Payment Account. By signing the bill payment instructions, you authorize Capital One, or our service providers, to debit (or if the Payment Account is with another financial institution, request that such institution debit) your Payment Account, and to remit (or request that such financial institution remit) funds on your behalf. We will perform the Service so that funds arrive at the designated Biller’s location as near as reasonably possible to the Scheduled Deliver By date you designate. You also authorize us to credit your Online Bill Payment Account for payments returned to us by the

United States Postal Service or any Biller, or for payments remitted to you on behalf of another Authorized Person of the Service.

ii. **Online Bill Pay Account Activity**

You should keep your Payment Accounts open and active. Should your eligible checking accounts close, Online Bill Pay services will end. Any unprocessed Outgoing Payment transactions will be canceled. Cancellation of Online Bill Payment transactions may take up to 5 Business Days from the processing date of a payment scheduled from your closed checking account. If you close your Payment Account, we will not process any Incoming Payments. Outgoing Payments scheduled through Online Bill Payment from a closed Payment Account may be processed, depending on the Scheduled Due date.

For Incoming Payments where your Payment Account is not a Capital One account, additional terms and conditions established by the other financial institution may apply.

For all Outgoing Payments and Incoming Payments that you schedule through the Services, you understand and agree that it is your responsibility to authorize payments so that the bills will be paid by the Due Date. You understand and agree that we reserve the right to impose a frequency or dollar limit on payment requests or to refuse to make any payment you have requested. We will attempt to notify you promptly if we decide to refuse to complete any Payment Instruction.

B. **WHEN USING THE SERVICES TO ACCESS YOUR CREDIT CARD ACCOUNT**

Payments to certain Capital One credit card accounts from any checking, savings or other deposit account(s) you designate may be made via the Pay Capital One feature of Online Banking. “Pay Capital One” payments through Online Banking will be debited from your designated Payment Account.

When you designate a Payment Account, you warrant that you are an Account User on the Payment Account. “Pay Capital One” payments will be debited from your designated Payment Account. By signing the bill payment instructions, you authorize Capital One to debit (or if the Payment Account is with another financial institution, request that such institution debit) your Payment Account, and to remit (or request that such financial institution remit) funds on your behalf.

i. **Make Instructions and Changes with Time to Spare**

You understand and agree that to be processed in accordance with your instructions, payment instructions and any changes to these instructions through Online Banking must comply with the payment rules disclosed when you make a payment. These payment rules are considered part of this Agreement.

ii. **If You Close Your Payment Account or Capital One Credit Card**
If you close your Payment Account, any payments scheduled to be deducted will not be processed. If you do not make other arrangements, you will be solely responsible for any fees incurred for late or non-payment as a result.

C. **WHEN USING THE SERVICE TO ACCESS YOUR AUTO LOAN ACCOUNT**
Payments to your auto loan account from any checking, savings, or other deposit accounts you designate may be made via Online Banking. You may also be able to make payments through other means, such as debit card or other digital wallets. These payments will be debited from the designated payment account.

When you designate a payment account, you warrant that you are an Authorized Person on that account. By signing the bill payment instructions, you authorize Capital One to debit (or if the payment account is with another financial institution, request that such institution debit) your payment account, and to remit (or request that such financial institution remit) funds on your behalf.

The cut-off time for Incoming Payments to an auto loan account scheduled through the Services but not scheduled through the Online Bill Pay service is 3:30 p.m. Central Time on Business Days. Incoming Payment requests initiated after this cut-off time will be processed the next Business Day.

If you set up a recurring payment for your auto loan account, you authorize Capital One Auto Finance, its successors and assigns, and the institution named, to initiate withdrawals from the payment account for funds payable to Capital One Auto Finance. This authorization will remain in effect until you notify Capital One Auto Finance to cancel. Requests to cancel a recurring payment must be received by 11:59 p.m. Eastern Time on the day before the scheduled payment date.

If you establish recurring payment instructions for your auto loan account through Online Banking, Capital One Auto Finance may not issue monthly periodic statements for that auto loan account.

If funds are unavailable at the time we attempt to debit your payment account or your direct payment is not received for any reason, you will be responsible for forwarding a payment to us. If ACH funds are not available, we'll try one additional,

final time. If your payment is not received by the auto account payment due date, you may be assessed late fees in accordance with your contract.

If you pay with a direct draft that is dishonored or returned, Capital One Auto Finance reserves the right to assess a "Returned Check Fee" in accordance with your contract. If a direct draft is returned, Capital One Auto Finance reserves the right to terminate this authorization and your participation in it.

i. **Make Instructions and Changes with Time to Spare**
You understand and agree that payment authorizations and any changes to these authorizations through Online Banking must comply with the payment rules disclosed when you make a payment. These payment rules are considered part of this Agreement.

Please note: You can stop payment of any entry by notifying Capital One Auto Finance in accordance with the cancellation terms provided at the time of scheduling your payment and/or in your payment-confirmation communication.

ii. **If You Close Your Payment Account**
If you close your payment account, any payments scheduled to be deducted from that account will not be processed. If you do not make alternative arrangements, you will be solely responsible for any fees incurred for late or non-payment as a result.

11. **Paze℠ Digital Wallet**

A. **Overview of Paze**
Paze is a digital wallet that stores information about you and your eligible credit and debit cards from Capital One, and from other participating financial institutions, for faster online checkouts. Paze is a Service subject to this Agreement.

B. **Cards in Your Wallet**
We will determine which cards are eligible for Paze in our sole discretion. You can see which of your cards are eligible at a given time in the Capital One mobile app or website. Eligible cards may be added to Paze by Capital One and you can choose to remove them at any time. When a card is added, Paze will exchange your actual card number for a unique token. By using Paze, you are requesting Capital One to create a unique token for each of your eligible cards to share with

merchants. If we send you a card with a new number, your Paze token(s) will continue to work. We may remove cards from Paze if they no longer meet our eligibility criteria.

C. **Using Paze to Checkout Online**

The Capital One cards in your Paze wallet will be associated with the email address(es) you have on file with us and any additional email addresses you provide for use with Paze. Paze will use the email address you provide, either to the merchant or directly to Paze, to allow you to access your Paze wallet.

To authenticate you, i.e., prove that you are who you say you are, Paze will send a text message with a unique code to your mobile phone number. Paze may collect other information for fraud-prevention purposes, including information about your cards and the device you are using.

Once you've passed all applicable security checks, you'll direct Paze to share your personal information and card details, including your unique Paze token, with the merchant. Transactions made using Paze will be subject to your credit card or debit card terms.

D. **Returns**

Keep your merchant-provided receipts for all Paze transactions. If you want to return a purchase made with Paze, the merchant will only have the Paze token you used to make the purchase and not your actual card number. So if you try to return a purchase using your actual card number, it might not work.

E. **Opting Out**

You can opt-out of Paze by visiting https://mywallet.paze.com/. When you opt-out, all of your cards will be removed from Paze, new cards will not be added to Paze, and you will not be prompted to use Paze at participating merchants. After opting out, you may not be able to add your eligible cards back into Paze for a period of time.

F. **Relationship to Early Warning Services, LLC and to Merchants**

Paze is delivered by Early Warning Services, LLC (EWS) on behalf of Capital One and other participating financial institutions. EWS may require that you agree to additional terms and conditions before using Paze. If you have questions about transactions on your account that were made using Paze, please contact Capital One by calling the number on the back of your card. See Section 17 for details about Your Responsibilities and Liabilities for unauthorized transactions.

Each purchase you make using Paze is between you and the merchant. The merchant's terms and conditions control that transaction. Paze helps you make purchases online. But this doesn't mean that we trust or guarantee anything about any merchant. We can't guarantee that any merchant is reputable or that the merchant will securely process the transaction.

The collection, use, storage, and protection of data you provide to merchants, when using Paze, is subject to the merchant's terms and conditions and privacy practices. If you choose to save your card and other information on file with a merchant when using Paze to checkout, merchants may work with Paze to exchange your token for another token for recurring use.

G. **Security & Confidentiality of Access Information**
To the fullest extent permitted by law, you are responsible for any use of Paze, including activities of those you authorize to use your account or device. While we use security protocols to detect fraud, we can't catch everything. If someone has access to your device or your Capital One account information, they could access Paze to initiate transactions. If you share access to your device or your Capital One information, you increase the risk of fraud. You should notify us as soon as possible of any unauthorized use of Paze on your account. Capital One reserves the right to deactivate some or all of your Paze tokens at any time if we believe the security of your Accounts or Paze wallet has been compromised. EWS may also deactivate your Paze wallet at any time if they believe the security of your Paze wallet has been compromised.

H. **Limitations on Use** To use Paze, you must: (1) have an active credit or debit card account that is eligible for Paze; (2) be enrolled in Capital One Online Banking with your credit or debit card account; (3) be 18 years of age or older; and (4) be a legal resident of the United States. Paze may require periodic updates, as well as updates to the device that it's running on (for security or other reasons, like a browser upgrade). Please note that Paze might not be available in languages other than English.

Your use of Paze may be subject to limitations, such as limits on the dollar amount or number of transactions in a specific time period. We also reserve the right to restrict your access to Paze or some or all of the Paze features without prior notice to you. We may also decline to process your transaction using Paze for risk management purposes.

I. **Things You Can't Do**
You agree not to use Paze for anything other than making authorized transactions. For example, you won't:

- decompile, reverse engineer, or otherwise access or attempt to access the source code for Paze;

- use any automated system (e.g., robot, bot, screenscraper) to access Paze;
- use Paze in a destructive way, such as transmitting viruses or exploiting bugs;
- access Capital One's services or systems other than as permitted by this Agreement;
- use Paze for anything illegal; or
- provide us with fake or incorrect information about you or your account.

12. **Fees and Charges**

For information about fees that may apply in connection with your Bank Account, please consult the Capital One Fee Schedule, available at any Capital One banking office. You can also call Online Banking Customer Service at 1-877-383-4802. In addition to such fees set forth in the Fee Schedule, you shall be subject to all fees, charges, penalties, balance requirements, and other restrictions explained in your account agreements or other Additional Agreements.

Fees are subject to change. And we may impose additional charges, penalties or fees in connection with your use of the Services at any time, subject to these terms.

You agree to promptly pay all fees and charges for the Services, and you authorize us to automatically deduct all applicable charges and fees from your designated Capital One Payment Account or any other eligible account.

You agree to be responsible for any telephone charges and/or Internet service fees you incur in accessing your accounts through the Services.

13. **Changes in Services; Interruptions in Service**

We may at any time revise, update, discontinue or otherwise modify, temporarily or permanently, the Services in whole or in part (including, without limitation, the Online Banking Site, this Agreement, the scope of the Services, and any materials related to the Services), or your access to them. We will attempt to provide prior notice of any such material changes (for example, by posting a notice of such changes on the Online Banking Site when you sign in; sending a notice to you at the address shown on our records; or sending you a secure message). But, we can't guarantee that such notice will be provided.

Whenever reasonably practicable, we will try to post or send notice of any additional fees for online transactions at least 30 days in advance of the effective date; or of any stricter limits on the type, amount, or frequency of transactions, or any increase in your responsibility for unauthorized transactions. But, we can't guarantee that we will provide such notice by such time. We

reserve the right to make any such changes effective immediately if necessary to maintain the security of the system or to comply with any laws or regulations. If we make such a change, and we can disclose it without jeopardizing the system's security, we will give you electronic or written notice within 30 days after the change.

Changes to the Services may render prior versions of the Services obsolete. We reserve the right to terminate this Agreement as to all prior versions of the Services and/or related materials and limit access to our more recent versions and updates.

You may choose to accept or decline changes by closing, continuing or discontinuing use of the Services to which these changes relate. When you use the Services after we make any changes you agree to such changes. We also reserve the option, in our sole discretion, to waive, reduce or reverse charges or fees in individual situations.

The Service is generally available 7 days a week, 24 hours a day. However, we may from time to time perform maintenance to the Services or experience hardware, software, or other problems related to the Services. This may result in interrupted service, delays or errors in the Services. We will try to provide prior notice of such interruptions, delays, or errors but cannot guarantee that such notice will be provided.

14. **Our Responsibility for Payments and Funds Transfers**

If we are ever obligated by law to pay interest on the amount of a transfer, you will be paid interest on a daily basis equal to the current annual percentage rate that is otherwise applicable to the account from which the funds transfer should have occurred. In the event we are ever liable to you for damages due to a transfer, your damages will be limited to actual damages only. We will not be responsible for incidental or consequential damages, court costs or attorneys' fees unless required by law

A. **WHEN USING THE SERVICES TO ACCESS YOUR BANK ACCOUNT**
When you use any payment or funds transfer service through the Services, you warrant that you are an Authorized User on the account from which the funds are drawn. We, or a third party acting as our agent, will use reasonable efforts to timely and properly complete funds transfers and bill payments from your designated checking, savings or other deposit account or line of credit accounts according to your instructions. However, neither we nor any Service Provider will be liable in any way for any failure or delay in completing any such transaction (whether an Outgoing Payment, Incoming Payment or funds transfer), if the conditions under Section 14(D) of this Agreement occur.

B. **WHEN USING THE SERVICES TO ACCESS YOUR CREDIT CARD ACCOUNT**

When you use any payment service through the Services, you warrant that you are an Account User on the account from which the funds are drawn. We, or a third party acting as our agent, will use reasonable efforts to timely and properly complete payments from your credit card accounts according to your instructions. However, neither we nor any Service Provider will be liable in any way for any failure or delay in completing any such transaction (whether an Outgoing Payment, Incoming Payment or funds transfer), if the conditions under Section 14(D) of this Agreement occur.

C. **WHEN USING THE SERVICE TO ACCESS YOUR AUTO LOAN ACCOUNT**

When you use any payment service through the Services, you warrant that you are an Authorized Person on the account from which the funds are drawn. We, or a third party acting as our agent, will use reasonable efforts to timely and properly complete payments from your payment accounts according to your instructions. However, neither we nor any Service Provider will be liable in any way for any failure or delay in completing any such transaction (whether an Outgoing Payment, Incoming Payment or funds transfer), if the conditions under Section 14(D) of this Agreement occur.

D. **LIMITED LIABILITIES FOR CERTAIN PAYMENTS AND FUND TRANSFERS**

Neither we nor any Service Provider will be liable in any way for any failure or delay in completing any such transaction (whether an Outgoing Payment, Incoming Payment or funds transfer), if:

- Through no fault of our own or of our agent, you do not have enough money in a designated checking, savings, or other deposit account, or any other account of any type, that account has been closed, or the transaction would exceed the credit limit on any applicable overdraft line of credit;
- Our payment processing center is not working properly and you knew or were told about the malfunction before you executed your bill payment instructions;
- You have not properly followed instructions on how to make a funds transfer;
- You do not provide us with complete, correct and current Payment Account or Biller information or instructions, or other payment account information or instructions;
- You do not authorize a bill payment or transfer in time for your payment to be credited by the Biller by the Due Date;
- A timely bill payment is made but the Biller nevertheless does not credit your payment promptly after receipt;
- Withdrawals from any accounts have been prohibited by a court order such as a garnishment or other legal process;
- We or our agent reasonably believe that a transaction may be unauthorized;
- Your computer or any related system was not working properly and it interfered with your attempt to authorize a funds transfer or bill payment;

- Circumstances beyond our or our agents' control prevent processing a payment you authorized or making a funds transfer or bill payment. Such circumstances include but are not limited to computer failure, telecommunication outages, postal strikes and other labor unrest, delays caused by Billers, fires, floods, and other natural disasters, terrorist acts or war; or
- Any other set of circumstances as set forth in this or any Additional Agreements.

15. **Disclosure of Account Information to Third Parties**

You authorize us to collect, use and disclose to third parties, affiliates, and agents, such as Service Providers, independent auditors, consultants or attorneys, information you have provided or that we or others have obtained about your accounts and the actions you take when using the Services consistent with our Capital One Online Privacy Policy. For additional information on how we may share personal information about you, please visit www.capitalone.com/privacy.

16. **Statement of Record**

Account information provided by the Services is not the statement of record. The periodic statement that is mailed to you, if applicable, will be the statement of record. If you have chosen to stop receiving paper statements, the periodic statement provided to you electronically will be the statement of record. You are responsible for reviewing any statement and other account communications sent to you by postal mail or electronically. Any mailed statement and other account communications will continue to contain important information about your accounts, regardless of whether you access your accounts through the Services or whether you have chosen to receive your statement and/or other account communications electronically.

17. **Your Responsibilities and Liabilities**

It is your sole responsibility to ensure that the contact and other information in your online banking user profile is current and accurate. This includes, but is not limited to, your name, address, phone numbers, email addresses, and account numbers.

You can call customer service for live support at 1-877-383-4802. Changes related to your bank, card and auto loan accounts can be made through the Online Banking Site or by notifying us as specified on our Contact Us page. Changes related to the Navigator Platform can be made by calling 1-800-689-1789.

We are not responsible for any payment processing errors or fees incurred by you if you do not provide accurate account or contact information.

A. **WHEN USING THE SERVICES TO ACCESS YOUR BANK ACCOUNT**

If you close any Payment Account you must notify us and identify a new Payment Account for the selected Services. If you close all your accounts with us, you agree to notify us to cancel your Services.

i. **Unauthorized Transactions**

We will send you periodic statements for your accounts with the regularity provided for in your account agreements. You are extremely important in preventing any wrongful use of your accounts. You must carefully examine your statement upon receipt.

Tell us AT ONCE if you suspect that an unauthorized transaction has been or may be made from your account; if you believe another person has improperly obtained your online passwords or has transferred or may transfer money from your accounts without authorization; or if you suspect fraudulent activity on your accounts.

You can call Customer Service at 1-877-383-4802 any day between the hours of 8:00 a.m. and 11:00 p.m. ET. You can write to us at Capital One, N.A., 7933 Preston Rd., Plano, TX 75024, or log into your account at capitalone.com and click on the transaction.

Telephoning us right away will help reduce possible losses. If we aren't timely notified, you could lose all the money in your checking, savings or other deposit accounts plus the maximum amount of credit available from your revolving line of credit account if it is used as overdraft protection.

To the extent a transaction is an electronic fund transfer from a Personal Account, the following rules apply: You can lose no more than $50 in connection with an unauthorized transfer resulting from the loss or theft of your Access Information if you notify us within 2 Business Days of learning of the loss or theft of your Access Information. However, you can lose as much as $500 in connection with an unauthorized transfer resulting from the loss or theft of your Access Information if you do not notify us within 2 Business Days of learning of the loss or theft of your Access Information and we can prove that we could have stopped the unauthorized transfer had we been notified. If you do not report unauthorized transactions that appear on any of your periodic statements within 60 days after such statements are mailed or electronically transmitted to you, you risk unlimited losses on transactions made after the 60 day period if we can prove that we could have stopped the unauthorized use if you had notified us in time. If a good reason, such as a long trip or hospital stay, kept you from telling us, we may extend the time periods in our sole discretion.

You agree to assist us in our efforts to recover any funds that were transferred or paid without your permission.

B. **WHEN USING THE SERVICES TO ACCESS YOUR CREDIT CARD ACCOUNT**

i. **Unauthorized Transactions**

We will send you periodic statements for your accounts with the regularity provided for in your account agreements. You are extremely important in preventing any wrongful use of your accounts. You must carefully examine your statement upon receipt.

Tell us AT ONCE if you suspect that an unauthorized transaction has been or may be made from your account; if you believe another person has improperly obtained your online passwords; or if you suspect fraudulent activity on your accounts. You can contact us as specified on our Contact Us page. You agree to assist us in our efforts to recover any funds that were transferred or paid without your permission. For more information on your rights and responsibilities for unauthorized transactions, please review your account agreement.

C. **WHEN USING THE SERVICE TO ACCESS YOUR AUTO LOAN ACCOUNT**

i. **Unauthorized Transactions**

We will send you periodic statements for your accounts with the regularity provided for in your account agreements. You are extremely important in preventing any wrongful use of your accounts. You must carefully examine your statement upon receipt.

Tell us AT ONCE if you suspect that an unauthorized transaction has been or may be conducted from your accounts; if you believe another person has improperly obtained your online passwords, Password/PIN or has transferred or may transfer money from your accounts without authorization; or if you suspect fraudulent activity on your accounts. You can contact us as specified on our Contact Us page. You agree to assist us in our efforts to recover any funds that were transferred or paid without your permission. For more information on your rights and responsibilities for unauthorized transactions, please review your account agreement and any Additional Agreements.

D. **ACCEPTABLE USE**

You agree that you are independently responsible for complying with all applicable laws when you use the Service, regardless of the purpose of the use. This includes all communications you send through the Service. We and our Service Providers have the right but not the obligation to monitor and/or remove communications or content that we find in our sole discretion to be objectionable in any way. In addition, you are prohibited from using the Service for communications

or activities that: (a) violate any law, statute, ordinance or regulation; (b) promote or support hate, violence, racial intolerance, or the financial exploitation of a crime, or criminal activity; (c) defame, abuse, harass or threaten others; (d) infringe or violate any copyright, trademark, right of publicity or privacy or any other proprietary right under the laws of any jurisdiction; (e) impose an unreasonable or disproportionately large load on our infrastructure; (f) facilitate any viruses, trojan horses, worms or other computer programming routines that may damage, detrimentally interfere with, surreptitiously intercept or expropriate any system, data or information; (g) use any robot, spider, other automatic device, or manual process to monitor or copy the Service or the portion of the Site through which the Service is offered without our prior written permission; (h) use any device, software or routine to bypass technology protecting the Site or Service, or interfere or attempt to interfere, with the Site or the Service; or (i) may cause us or our Service Providers to lose any of the services from our internet service providers, payment processors, or other vendors.

18. **In Case of Errors or Questions about Payments, Transfers or Other Transactions Made Through the Services**

A. **WHEN USING THE SERVICES TO ACCESS YOUR BANK ACCOUNT**
In case of questions or errors about funds transfers or bill payments made through the Services, you must do one of the following:

Call us at 1-877-383-4802.

Write to us at:
Capital One, N.A.
7933 Preston Rd.
Plano, TX 75024
Attn: Customer Service Center

Or log into your account at capitalone.com and click on the transaction.

With respect to any statements you receive from us that reflect transactions you performed while using the Services, if you think your statement is wrong or if you need more information about a transaction listed on the statement, we must hear from you no later than 60 days after we sent the FIRST paper or online statement on which the problem or error appeared.

When you report an error we will ask you to:

If you tell us verbally, we may require that you send us your complaint or question in writing within 10 Business Days. We will determine whether an error occurred within 10 Business Days after we hear from you and will correct any error promptly. If we need more time, however, we may take up to 45 days to investigate your complaint or question. If we decide to do this, we will credit your Account within 10 Business Days for the amount you think is in error, so that you will have the use of the money while we complete our investigation. If we ask you to put your complaint or question in writing and we do not receive it within 10 Business Days, we may not credit your Account. If the error occurred within 30 days after the first deposit to your Account, we may take up to 90 days to investigate your complaint or question, and we may take up to 20 Business Days to credit your Account for the amount you think is in error. We will tell you the results within 3 Business Days after completing our investigation. If we decide there was no error, we will send you a written explanation. You may ask for copies of the documents that we used in our investigation.

In our investigation of any bill payment transactions, we will request from the Biller a refund of any interest and/or fees which you may have been wrongly assessed, provided that we will have no obligation to further pursue such request if the Biller denies such request. You will be notified of the final resolution.

1. Tell us your name and Account number.
2. Describe the error or the transfer you are unsure about and explain as clearly as you can why you believe it is an error or why you need more information.
3. To the extent possible, tell us the dollar amount of the suspected error.

B. **WHEN USING THE SERVICES TO ACCESS YOUR CREDIT CARD ACCOUNT**
In case of questions or errors about payments or other transactions made through Online Banking, you must call us as specified on our Contact Us page. For more information on your rights and responsibilities for billing errors, please review your Billing Rights Summary, which is considered part of this Agreement.

C. **WHEN USING THE SERVICES TO ACCESS YOUR AUTO LOAN ACCOUNT**
In case of questions or errors about payments or other transactions made through Online Banking, you must call us as specified on our Contact Us page.

19. **Area of Service**

Unless otherwise agreed by Capital One, the Services described in this Agreement are offered to citizens and legal residents of the United States of America.

20. **Collection Expenses**

If we have to file a lawsuit to collect what you owe us, you will pay our reasonable expenses, including attorneys' fees and court costs, unless prohibited by applicable law.

"Remittance transfers," as defined by Regulation E, Subpart B, are governed by the laws of the U.S. and to the extent applicable, the laws of the State of New York, including New York's version of Article 4A of the UCC.

21. **Downloading and Exportation**

The United States Export Control laws prohibit the export of certain technical data and software to certain territories. No content from the Online Banking Site or any other Capital One Site may be downloaded or otherwise exported in violation of United States law.

22. **Changes or Amendment**

We may change, suspend, or discontinue the Services described in this Agreement, or any of their features or the applicable fees and charges, in our sole discretion and at any time. Any changes may result in the addition of new charges or terms. If we make changes, you will be notified if required by applicable law. Unless otherwise indicated, when you use the Services after the effective date of the revised terms, you accept the terms.

23. **Termination**

Your rights under this Agreement will cease without notice if you fail to comply with any of its terms. In such a case, we may immediately stop your access to the Service.

24. **Notices**

We may provide you with notices related to the Service by email, text message/SMS/RCS, regular mail, push notifications, or postings on the websites or apps related to the Service. Your use of the Service is subject to the consent you may have provided to send you certain notices and other communications electronically. See the Electronic Communications Disclosure

for more information. To review your consent status, and the applicable terms and conditions, you'll need to sign into your Online Banking account to view and learn more about your paperless settings.

25. **Tech Support**

Capital One may not be able to provide support for the Site. If Capital One provides support, it will be in addition to other support for your Account. You agree to any support rules, policies, and determinations.

26. **Feedback**

You agree that any suggestions, comments, and feedback you submit to Capital One ("Feedback") shall be the property of Capital One. Capital One is free to use any Feedback without any restriction of any kind. This includes without limitation the right to reproduce, display, transform, distribute and create derivative works. Capital One can also use any ideas, concepts, know-how or techniques in such Feedback for any purpose.

27. **Assignment**

We may assign this Agreement to our parent corporation or to any now-existing or future direct or indirect subsidiary of our parent corporation or another Capital One entity; or to any existing or future direct or indirect subsidiary of Capital One; or to any of our existing or future affiliates. We may also assign or delegate certain of our rights and responsibilities under this Agreement to independent contractors or other third parties. You may not assign this Agreement or your rights to use or access the Services to any other party.

28. **Data Recording**

When you contact us, the communication or the information you provide may be recorded or otherwise retained by us or by our Service Provider. You consent to such recording or retention. Without limiting the above, you agree that we may record the conversations our employees or agents have with you or your agents to ensure your instructions are followed and monitor quality of service and accuracy of information our employees and associates give you.

29. **Disclaimer of Warranty**

CAPITAL ONE PROVIDES THE SERVICES “AS IS.” CAPITAL ONE MAKES NO EXPRESS OR IMPLIED WARRANTY OR REPRESENTATION. CAPITAL ONE DISCLAIMS ALL WARRANTIES, EITHER EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION THE WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NONINFRINGEMENT. NO ORAL OR WRITTEN ADVICE OR INFORMATION GIVEN BY US CREATES ANY KIND OF WARRANTY NOT EXPRESSLY STATED IN THIS AGREEMENT. CAPITAL ONE MAKES EVERY EFFORT TO PROVIDE ACCURATE INFORMATION IN CONNECTION WITH THE SERVICES. BUT CAPITAL ONE MAKES NO WARRANTY THAT (a) THE SERVICES WILL BE UNINTERRUPTED, TIMELY, SECURE, OR ERROR-FREE; (b) THAT DEFECTS WILL BE CORRECTED; OR (c) ANY INFORMATION CONTAINED IN, RESULTS THAT MAY BE OBTAINED FROM THE USE OF, OR OTHER ASPECT OF THE SERVICES WILL BE ACCURATE, CURRENT, COMPLETE OR RELIABLE.

30. **Limitation on Liability & Damages**

TO THE MAXIMUM EXTENT PERMITTED BY LAW, YOU ASSUME ALL RISK THAT MAY RESULT FROM YOUR USE OF THE SERVICES. YOU AGREE NOT TO HOLD US (NOR ANY OTHER PARTY INVOLVED IN CREATING, PRODUCING, OR DELIVERING THE SERVICES) LIABLE FOR ANY DIRECT, INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES RELATING TO YOUR ACCESS OR USE (OR INABILITY TO ACCESS OR USE) THE SERVICES, REGARDLESS OF WHETHER THEY’RE BASED ON WARRANTY, CONTRACT, TORT, STATUTE, OR ANY OTHER LEGAL THEORY. THIS INCLUDES WITHOUT LIMITATION DAMAGES FOR LOSS OF PROFITS, GOODWILL, USE, DATA, OR OTHER INTANGIBLE LOSSES. THE SERVICES MAY SOMETIMES BE DOWN, DELAYED, INTERRUPTED, OR NOT WORKING PROPERLY. WE ARE NOT LIABLE TO YOU FOR ANY INTERRUPTIONS OR UNAVAILABILITY OF THE SERVICES. SHOULD THE SERVICES BE DEFECTIVE IN ANY WAY, WE ASSUME NO LIABILITY FOR SERVICING, REPAIR, OR CORRECTION, EXCEPT AS EXPRESSLY STATED IN THIS AGREEMENT. CAPITAL ONE HAS NO OBLIGATION TO CORRECT ANY BUGS, DEFECTS, OR ERRORS IN CONNECTION WITH THE SERVICES.

IF YOU ARE DISSATISFIED WITH THE SERVICE, YOUR SOLE AND EXCLUSIVE REMEDY IS TO STOP USING THE SERVICE.

IN STATES WHERE THE EXCLUSION OR LIMITATION OF LIABILITY FOR CONSEQUENTIAL OR INCIDENTAL DAMAGES MAY NOT APPLY, OUR LIABILITY IN THOSE STATES IS LIMITED AND WARRANTIES ARE EXCLUDED TO THE GREATEST EXTENT PERMITTED BY LAW BUT SHALL, IN NO EVENT, EXCEED TEN DOLLARS ($10).

31. **Indemnification**

You agree that you are personally responsible for your conduct while using the Services. You agree to indemnify, defend, and hold harmless Capital One and our respective owners, affiliates, directors, officers, employees and agents from claims, losses,

expenses, liability, damages and costs (including, but not limited to, direct, incidental, consequential, exemplary and indirect damages), and reasonable attorneys' fees, caused by or arising out of your use, misuse, or inability to use the Services. This includes any violation by you of these terms. This provision will survive the expiration or termination of this Agreement.

32. **Governing Law; Jurisdiction; Venue**

Virginia law governs this Agreement without regard to its conflicts of law principles. To the extent permitted under any applicable law, this Agreement will not be subject to the Uniform Computer Information Transactions Act as codified or amended. You irrevocably and unconditionally submit to the jurisdiction and venue of the United States District Court for the Eastern District of Virginia. If this court does not have subject matter jurisdiction, then you submit to the courts of Virginia located in Henrico or Fairfax County.

33. **SPECIAL NOTICE FOR CALIFORNIA USERS**

Under California Civil Code Section 1789.3, certain users of the Services from California are entitled to the following specific consumer rights notice: The Complaint Assistance Unit of the Division of Consumer Services of the California Department of Consumer Affairs may be contacted in writing at 1625 North Market Blvd., Suite N 112, Sacramento, CA 95834, or by telephone at (916) 445-1254 or (800) 952-5210. You may contact us at:

Capital One
Attn: Legal Notice
PO Box 30285
Salt Lake City, UT 84130-0285

34. **Capital One's Intellectual Property**

Capital One owns the intellectual property rights related to or used in connection with these services. This includes patents, trade secrets, copyrights, and trademarks. All other intellectual property rights are the property of their respective owners. Nothing in this Agreement gives you any rights with respect to any intellectual property rights owned by Capital One or others. All other trademarks and graphics are the property of their respective owners.

35. **Severability**

If any part of this Agreement is void or unenforceable, all remaining terms shall remain valid and enforceable.

36. **Non-Waiver**

We shall not be deemed to have waived any of our rights or remedies unless such waiver is in writing and signed by us. No delay or failure on our part to exercise any right or remedy shall be a waiver of that or any other right or remedy. A waiver on any particular occasion shall not be construed as a bar or waiver of any rights or remedies in the future.

UK

Footnotes

Learn more about FDIC insurance coverage.

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